

Agreement By and Between Cheyenne Civic Center and I.A.T.S.E. Local 229

THIS AGREEMENT is made and entered into by the Cheyenne Civic Center (hereinafter referred to as the “Producer”) and Local 229 of the International Alliance of Theatrical Stage Employees, Moving Picture Technicians, Artists and Allied Crafts of the United States, its Territories and Canada (hereinafter referred to as the “Local 229”).

NOW, THEREFORE, the parties hereto, intending to be legally bound, hereby agree as follows:

1. RECOGNITION

- A. The Producer acknowledges that Local 229 shall exclusively represent and refer all requested stagehand, rigging and operator employees during the term of this agreement. The covered work includes: all rigging (operation of all: boom lifts, lull lifts, AWP's / MEWP's), truss installation, lighting, carpentry, properties, audio, video, truck loaders, forklift op, hair/make-up, and wardrobe labor as required. Operation of production eq: lighting and audio boards, cameras, spotlights, flyrail, etc. as required. Any venue equipment that is required to be used by the show that needs a certified operator, the venue will supply the operator if available.
- B. The Producer acknowledges that upon any request for more stagehand labor, as defined in section 1.A of this agreement, that Local 229 shall exclusively represent the additional labor during the term of this agreement.
- C. The Producer will place all calls for labor under this agreement with Local 229 and will not contact the employees directly. Local 229 will make every effort to refer all workers requested by the Producer and will work closely with the Producer's representative to integrate Producer's current call list with Local 229's call list and employee referral procedure. If Local 229 requests assistance from the Producer to fill a specific call, then the Producer may contact employees for that specific call.
- D. This agreement shall be for work at the Cheyenne Civic Center Performing Arts Theater and be for productions that require 22 or more stagehands by the incoming production. At the discretion of the Producer, Local 229 can be used for smaller calls (less than 22 stagehands) and at any other venue the producers may choose and all provisions of 1.A, 1.B and 1.C will be followed along with the remainder of this document.
- E. For this agreement the terms: employee, worker, or referent will be used synonymously.

2. ENGAGEMENTS

- A. Local 229 agrees to refer competent employees to perform work as required by the Producer under the provisions of this Agreement.
- B. The Producer shall provide a minimum of twelve (12) hours notice of a change in time or cancellation of a call. Local 229, upon receipt of such notice, shall make a reasonable effort to notify all employees of the change or cancellation. If any employee does not receive notice and reports for work at the previously assigned time, the Producer shall pay six (6) hours wages to any employee who reports for work as originally scheduled. Any mileage will also be paid as required by this agreement. All cancellations within twelve (12) hours of the first scheduled call will result in the Producer being presented an invoice for six (6) hours wages for each employee scheduled and any travel allowance if applicable will be one-half (1/2) of the amounts described

in the IATSE 229 and Cheyenne Civic Center Rate Sheet, attached hereto as Exhibit A and incorporated by this reference.

- C. Travel Allowance: Travel Allowance will only be paid if the referred worker completes all calls that have been accepted. Travel Allowance is only one (1) per qualified employee in any 24-hour workday. This is not a wage, but an allowance and not subject to withholding taxes and assessment calculations. Travel per-diem applies for any employee traveling forty-five (45) miles or more one way to the venue. If the referent only accepts or only shows up for an In or an Out call, the amount of the travel allowance if applicable will be one-half (1/2) of the amounts described in the attached Rate Sheet (Exhibit A).
- D. Any employee who travels greater than one hundred (100) miles one way to the venue and has a subsequent call at the same venue or within fourteen (14) hours of the conclusion of the most recent workday, must be offered a single occupancy hotel room for safety concerns. Any employees traveling greater than one hundred twenty-five (125) miles one way to a venue or must be offered a single occupancy hotel room for safety concerns, regardless of any subsequent work or not. Any and all of this lodging will be arranged and pre-paid for by the Producer.
- E. The Producer shall be responsible for all wages, associated payroll fees and other obligations.

3. WAGES AND CONDITIONS

- A. Please refer to the attached Rate Sheet (Exhibit A).
- B. All work calls shall be a minimum of six (6) hours. Any break given before the end of the fourth (4th) hour shall be a paid break. A continuation call may be scheduled for one (1) hour after the beginning of an unpaid break and shall be for a minimum of two (2) hours. "Load-In", "Load-Out" and "Show" are each separate work calls.
- C. All time worked after eight (8) hours in one workday shall be paid at a rate of one and one-half times ($1\frac{1}{2} \times$) the base rate. All time worked between the hours of 12:00AM and 8:00AM shall be paid at a rate of one and one-half times ($1\frac{1}{2} \times$) the base rate. A new workday shall begin eight (8) hours or more after the completion of the most recent work period. No worker shall be replaced for the purpose of avoiding payment of overtime. Local 229 shall not refuse to relieve any personnel who may not be able to work safely due to fatigue.
- D. The following holidays will be paid at a rate of two times (2x) the base rate: New Years Day, Martin Luther King Jr. Day, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving Day, Christmas Day. All time worked after eight (8) hours or between the hours of 12:00AM and 7:00AM on any of these holidays will be paid at a rate of three times (3x) the base rate.
- E. All work shall be scheduled such that every worker receives a one (1) hour meal break at or before the end of any sixth (6th) consecutive hour of work. Paid breaks of one-half ($\frac{1}{2}$) hour may substitute for a one (1) hour unpaid break if the Producer provides a substantial meal to the employee. Any time worked in violation of this provision shall be paid at a meal-penalty rate of two times (2x) the current rate until such meal break is given.
- F. Hours shall be tracked in half-hour ($\frac{1}{2}$ hour) increments beginning on an exact hour or half-hour. Any portion of a half-hour worked will constitute a half-hour worked.
- G. A show call, for a performance or rehearsal, shall begin one-half ($\frac{1}{2}$) hour before the announced curtain time. A show employee may be scheduled for a continuity call of either one-half ($\frac{1}{2}$) hour or one (1) hour before the show call to perform work associated with the performance or rehearsal. The employee shall be paid for the continuity call in addition to the show call and at one and one-half times ($1\frac{1}{2} \times$) the employee's prevailing rate.

- H. Wardrobe workers on the show call may work for up to ten (10) minutes after the end of the show to finish up. Any work beyond this ten (10) minute period places the worker into the separately defined "Load-Out" call.
- I. For trucks of length greater than twenty-four (24) feet that contain production, staging, and/or other event related items, four (4) truck loaders are required for the labor call. Truck loaders only load and unload trucks.

4. **PAYMENT**

- A. The Producer will use a payroll agent. Payment in full to the payroll agent is due as soon as approved by the City on its regular payment schedule. Local 229 will do everything possible to expedite the presentation of the invoice and paperwork to the payroll agent.
- B. As these are wages for workers, any invoice must be paid promptly: by mail, by expedited service, by courier, in person, or electronically. If the payment for the final presented invoice is not received by the payroll agent in full within fourteen (14) business days, there will be a ten percent (10%) penalty assessed in the form of a subsequently presented final invoice, which is due upon receipt, rendering the originally presented final invoice null. This late penalty of ten percent (10%) is applicable for every seven (7) business days that the invoice remains in arrears. This ten percent (10%) penalty is an increase in the wages due to each worker expecting payment. The subsequent invoices will also include any additional administrative charges required by the payroll agent.
- C. The payroll agent chosen shall deduct or have deducted from each employee's paycheck any fees owed by the employee to Local 229. Fees owed are a five percent (5%) assessment withholding from the employee's gross wage. The payroll agent shall deliver or have delivered to **Local 229, P.O. Box 677, Fort Collins, CO 80522** said fees, along with a report of the gross income and amount collected from each employee. These fees and reports are able to be sent electronically to Local 229. Fees shall be delivered on the same schedule as paychecks.

5. **BENEFITS**

A contribution to the IATSE NBF (National Benefit Fund) is required for each employee covered by this agreement. See Rate Sheet (Exhibit A) for applicable percentage. Full contribution is submitted to the Annuity.

6. **TERM OF AGREEMENT**

This Agreement shall remain in effect beginning upon the date of the last signature affixed hereto until and including the 30th day of June 2026. With negotiations in the Spring/Summer of 2026.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed, the day and year first above written.

For I.A.T.S.E. Local 229:

For Cheyenne Civic Center:

By: _____
David Denman - Business Agent

By: _____

Date: _____

Date: _____

**IATSE 229 AND CHEYENNE CIVIC CENTER
RATE SHEET
JULY 1, 2024 THROUGH JUNE 30, 2031**

3.A WAGES AND CONDITIONS

POSITION	Year 1	Year 2 5%	Year 3 5%	Year 4 5%	Year 5 5%
Steward	28.28	29.70	31.18	32.74	34.38
Lead Rig	33.94	35.64	37.42	39.30	41.26
Rig	31.92	33.52	35.20	36.96	38.80
Dept. Head	22.22	23.34	24.50	25.72	27.02
Stagehand	20.20	21.22	22.28	23.38	24.56
Eq. Op	24.24	25.46	26.72	28.06	29.46
Board Op	27.28	28.64	30.08	31.58	33.16
Camera Op	29.30	30.78	32.30	33.92	35.62

2.C ENGAGEMENTS

TRAVEL ALLOWANCE	Year 1	Year 2	Year 3	Year 4	Year 5
45 TO 74 Miles	75.00	75.00	100.00	100.00	125.00
75 Miles and Up	100.00	100.00	125.00	125.00	150.00

5.A BENEFITS

ANNUTIY CONTRIBUTION	Year 1	Year 2	Year 3	Year 4	Year 5
BENEFIT %	5%	7%	8%	9%	10%

NOTE: ALL YEARS ARE – JULY 1 THROUGH JUNE 30. Example: Year 1 is July 1, 2024 through June 30, 2025.

Exhibit A